

preliminary opinion, the patent proprietor withdrew its main request (as filed with the statement of grounds of appeal) for maintenance of the patent as originally granted and requested as a new main request the maintenance of the patent in the amended form as allowed by the opposition division. The board considered that in doing so, the patent proprietor had, in effect, withdrawn its appeal before a decision was issued within the meaning of R. 103(4)(b) EPC.

Under R. 103(4)(c) EPC, 25% of the appeal fee is reimbursed if any request for oral proceedings is withdrawn within one month of notification of the communication issued by the board in preparation for the oral proceedings, and no oral proceedings take place.

In T. 517/17 the appellant's indication that it would not attend the scheduled oral proceedings was taken as an implicit withdrawal of its request for oral proceedings for the purposes of R. 103(4)(c) EPC (see also T. 202/18; see T. 1888/18 for reimbursement following a request for a decision according to the state of the file). Another interpretation is that R. 103(4)(c) applies only if the party explicitly withdraws its request for oral proceedings (T. 73/17, T. 191/17 and T. 2698/17). See also chapter III.C.4.3.1 "General principle: withdrawal only by virtue of a clearly expressed intention not to proceed with the request" and III.C.4.3.2 "Announcing non-attendance".

In T. 1282/16, in response to the communication issued by the board under Art. 15(1) RPBA 2020 in preparation for oral proceedings, the appellant had filed a new main request and stated that it was withdrawing its request for oral proceedings if that new main request could in principle be granted. The board considered the main request allowable and so the appellant's condition was met. This meant that the withdrawal of its request for oral proceedings had taken effect on the date of filing the main request, which was within one month of notification of the communication under Art. 15(1) RPBA 2000.

In T. 777/15 the board held that the appellant not having requested oral proceedings could not benefit from another party's withdrawal of the request for oral proceedings. This was so because, for the appellant not having requested oral proceedings, the condition in R. 103(4)(c) EPC that "any request for oral proceedings is withdrawn within one month of notification of the communication issued by the Board of Appeal in preparation for the oral proceedings" was not fulfilled merely because another party had requested oral proceedings and withdrawn their request within the time specified in R. 103(4)(c) EPC (see also T. 795/19). By contrast, in T. 488/18 the board held that the appellant could obtain reimbursement despite never having requested oral proceedings, based on the respondent's withdrawal of its request for oral proceedings in the time prescribed by R. 103(4)(c) EPC. See also T. 598/19.

In T. 1610/15 the board held that the appellant's request for oral proceedings had been withdrawn in time. A respondent's belated withdrawal of its request had no adverse effect in this regard. The wording of R. 103(4)(c) EPC did not require that all requests for oral proceedings filed in a case had to be withdrawn within a month of notification of the communication issued by the board in preparation for those proceedings. For the first condition for partial reimbursement under R. 103(4)(c) EPC to be met, it was instead enough that one request for oral proceedings had been withdrawn in time.

In T.2249/18 the decision to hold oral proceedings had been made by the board rather than them being requested by the appellant. For the purposes of R.103(4)(c) EPC, the board likened the situation in the case in hand to that where an appellant makes a request for oral proceedings. This was because conducting oral proceedings had become unnecessary due to an action by the appellant, in that it filed a request overcoming the objections raised by the board. Applying R.103(4)(c) EPC by analogy, the board decided that 25% of the appeal fee was to be reimbursed.

In T.1678/17 the request for oral proceedings was not in fact withdrawn within one month of notification of the communication issued by the board of appeal in preparation for the oral proceedings. However, in view of the notice from the EPO dated 1 May 2020 concerning the disruptions due to the COVID-19 outbreak (OJ 2020, A60) and R.134(2) and (4) EPC, the board held that the conditions for reimbursement of 25% of the appeal fee, stipulated in R.103(4)(c) EPC, were fulfilled.

11.13. Communication in preparation for the oral proceedings

In T.2044/16 the board found that, even though it had already issued a detailed substantive communication under Art.15(1) RPBA 2020 in preparation for oral proceedings, the wording of R.103(4)(c) EPC did not preclude it from granting a reimbursement on the basis of an additional communication, issued by it at a later date (here, the board had asked the appellant to inform it whether it intended to attend the oral proceedings), that led to withdrawal of the request for oral proceedings within one month. The board concluded that the deadline under R.103(4)(c) EPC was triggered anew by each preparatory communication issued. The deliberations in T.265/14 regarding reimbursement under R.103(3)(b) EPC also applied to the situation in this case. See also T.1730/16.

In T.110/18 the appellant had withdrawn its request for oral proceedings within one month of notification of the second communication pursuant to Art.15(1) RPBA 2020, which was exceptionally issued in view of the COVID-19 outbreak. The board followed the rationale of T.265/14 (of the same board in a different composition) and concluded that the requirements for a 25% reimbursement of the appeal fee according to R.103(4)(c) EPC had been met.

11.14. Reimbursement of the appeal fee outside of the scope of Rule 103 EPC because of a violation of the principle of the protection of legitimate expectations

In T.308/05 the board ruled that the appeal fee was to be reimbursed even though the appeal had been withdrawn. Referring to J.30/94 and J.38/97 (see below) the board held that the fact that in the case in hand the EPO had been found to have breached the principle of the protection of legitimate expectations, and that the consequence had been the filing of an appeal which was objectively superfluous, made it necessary for reasons of equity to refund the appeal fee paid by the appellant. See also T.1785/15.

In T.613/14 the board stated that in contrast to a request for correction of the minutes or the decision to grant, there was no established case law on the issue of whether or not the

rejection of a request for correction of a decision under R. 140 EPC was open to appeal. It found therefore that it was likely, that when filing the appeal, the appellant had relied on the opposition division's statement that the decision was open to appeal. The board considered the opposition division's statement to have created a legitimate expectation that an appeal would be found admissible and examined as to its substance, at least in respect of the request for correction of the decision. However, in its preliminary opinion, the board took the position that the appeal against the opposition division's refusal of the request to correct its decision was not admissible. The board held that it had thus deprived the appellant of its legitimate expectations. After the board had maintained its preliminary opinion during the oral proceedings, the appellant withdrew its appeal. Under these circumstances, the board considered it justified to order the reimbursement of the appeal fee in accordance with J 30/94, J 38/97, T 308/05 and T 1785/15.

In J 30/94 the board held that Art. 109(2) EPC created a legitimate expectation of the parties that an appeal would be remitted to the board of appeal within a reasonable time after the decision of the department of first instance not to allow the appeal. The board held EPO had clearly offended against this legitimate expectation because the appeal was only referred to the Boards of Appeal seven years after its filing. The board found it equitable under these exceptional circumstances to order the reimbursement of the appeal fee even though the appeal had been withdrawn.

In J 38/97 the appeal was found inadmissible but the appeal fee was nevertheless refunded. The board took the view that the appellant, having requested an appealable decision, could legitimately expect the impugned decision to be issued by the competent department and not by a person lacking legal authority. In accordance with the principle of good faith, it was equitable in these circumstances to order the reimbursement of the appeal fee.

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